

BYLAWS
OF
WISCONSIN REPEATER ALLIANCE, INC.

A Wisconsin Nonstock Corporation

Organized under Chapter 181 of the Wisconsin Statutes

Adopted: _____

Effective: _____

GOVERNING STATEMENT

These Bylaws establish the internal governance of Wisconsin Repeater Alliance, Inc. (the "Corporation"). They are intended to provide a modern, accountable, transparent, and sustainable structure for the Corporation while preserving continuity of Wisconsin amateur radio repeater frequency coordination, technical knowledge, historical records, stakeholder relationships, and the existing Wisconsin band-plan framework. These Bylaws shall be interpreted consistently with the Corporation's Articles of Incorporation, Chapter 181 of the Wisconsin Statutes, applicable federal law, and the Corporation's intended qualification and continued operation as an organization described in Section 501(c)(3) of the Internal Revenue Code.

Nothing in these Bylaws, standing alone, changes the technical frequency allocations, repeater pairs, channel spacing, frequency splits, or other technical content of the Wisconsin Band Plan. Technical and operational documents shall be adopted, maintained, and administered separately under policies and resolutions approved in accordance with these Bylaws.

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ARTICLE I

NAME, STATUS, OFFICES, AND GOVERNING AUTHORITY

Section 1.1. Name. The name of the corporation is Wisconsin Repeater Alliance, Inc. It may conduct activities under an approved acronym, trade name, or program name authorized by the Board of Directors, provided that no such use changes the Corporation's legal identity.

Section 1.2. Status. The Corporation is a Wisconsin nonstock corporation organized under Chapter 181 of the Wisconsin Statutes. The Corporation is a separate legal entity from any predecessor, legacy, affiliated, or similarly named organization.

Section 1.3. Principal Office. The Corporation shall maintain a principal office at a location determined by the Board of Directors. The principal office may be changed by Board resolution without amendment of these Bylaws.

Section 1.4. Registered Agent and Registered Office. The Corporation shall continuously maintain a registered agent and registered office in Wisconsin as required by law. The Board may authorize any filing necessary to change the registered agent or registered office.

Section 1.5. Governing Hierarchy. If any provision of these Bylaws conflicts with the Articles of Incorporation or a mandatory provision of applicable law, the Articles of Incorporation or applicable law shall control. Board policies, committee charters, technical standards, manuals, forms, and procedures shall be subordinate to these Bylaws.

Section 1.6. Definitions.

(a) "Board" means the Board of Directors of Wisconsin Repeater Alliance, Inc.

(b) "Band Plan" means the Wisconsin amateur radio band-plan document or documents duly adopted by the Corporation for coordination and spectrum-planning purposes.

- (c) "Coordination" means a frequency-coordination recommendation concerning transmit and receive channels and associated operating or technical parameters for an amateur repeater or auxiliary station.
- (d) "Frequency Coordinator" means the individual appointed by the Board to administer the Corporation's frequency-coordination function, consistent with applicable FCC rules, the Band Plan, and duly adopted Corporation policies.
- (e) "Holder of Coordination" means the individual or entity recorded by the Corporation as responsible for ensuring that a coordinated system operates consistently with the applicable coordination recommendation.
- (f) "Voting Member" means a member entitled to vote under Article III. "Associate Member" means a member without voting rights unless expressly provided otherwise by these Bylaws.
- (g) "Written" or "in writing" includes electronic communications and electronic signatures to the extent permitted by applicable law and these Bylaws.

ARTICLE II

PURPOSE, MISSION, AND TAX-EXEMPT LIMITATIONS

Section 2.1. Exclusive Exempt Purposes. The Corporation is organized and shall be operated exclusively for charitable, educational, and scientific purposes within the meaning of Section 501(c)(3) of the Internal Revenue Code, as amended, or the corresponding provision of any future federal tax law.

Section 2.2. Mission. The Corporation's mission is to promote the orderly, technically sound, fair, and efficient use of amateur radio spectrum in Wisconsin; to support education, technical investigation, and cooperation within the amateur radio service; and to preserve and responsibly administer the institutional knowledge, coordination records, technical standards, and stakeholder relationships necessary for long-term repeater and auxiliary-station frequency coordination.

Section 2.3. Programmatic Purposes.

- (a) Serve as a frequency-coordination entity for amateur repeater and auxiliary stations in Wisconsin, consistent with the concept of a frequency coordinator under 47 C.F.R. Part 97.
- (b) Recommend transmit/receive channels and associated operating and technical parameters designed to avoid or minimize potential interference.
- (c) Collaborate with frequency coordinators in neighboring states, regions, and other relevant jurisdictions where coordination or interference considerations cross geographic boundaries.
- (d) Promote efficient spectrum utilization through technically supportable coordination standards, modeling, engineering practices, records, and published guidance.
- (e) Maintain and preserve coordination data, historical records, band-plan materials, institutional knowledge, and other records reasonably necessary to provide continuity and accountability.
- (f) Provide educational information, technical assistance, training, and resources concerning amateur repeater systems, coordination practices, interference avoidance, and related radio-technical subjects.

- (g) Facilitate impartial procedures for coordination requests, periodic updates, transfers, interference concerns, de-coordination, appeals, and related administrative matters.
- (h) Engage in other lawful activities that further the Corporation's charitable, educational, or scientific purposes and are consistent with Section 501(c)(3).

Section 2.4. No Private Inurement. No part of the net earnings of the Corporation shall inure to the benefit of, or be distributable to, any director, officer, member, employee, coordinator, advisor, volunteer, or other private person, except that the Corporation may pay reasonable compensation for services actually rendered and may make payments and distributions in furtherance of its exempt purposes.

Section 2.5. Private Benefit Limitation. The Corporation shall not be organized or operated for the primary benefit of any private individual, commercial entity, club, system owner, Holder of Coordination, director, officer, or other insider. Any private benefit arising from the Corporation's activities must be incidental to the accomplishment of its exempt purposes.

Section 2.6. Legislative Activities. No substantial part of the activities of the Corporation shall consist of carrying on propaganda or otherwise attempting to influence legislation, except to the extent permitted for an organization described in Section 501(c)(3), including any valid election or expenditure limitation available under federal tax law.

Section 2.7. Political Campaign Activity. The Corporation shall not participate or intervene, directly or indirectly, in any political campaign on behalf of or in opposition to any candidate for public office, including by publishing or distributing statements in violation of Section 501(c)(3).

Section 2.8. No Impermissible Activities. Notwithstanding any other provision of these Bylaws, the Corporation shall not carry on activities that are not permitted to be carried on by an organization exempt from federal income tax under Section 501(c)(3) or by an organization contributions to which are deductible under Section 170(c)(2) of the Internal Revenue Code.

Section 2.9. Neutrality in Coordination. Coordination decisions shall be administered without improper preference, discrimination, retaliation, or favoritism. A coordination recommendation is a technical recommendation and does not create ownership of spectrum, a property right, or an exclusive or indefinite right to use a frequency.

ARTICLE III MEMBERSHIP

Section 3.1. Membership Structure. The Corporation shall have members. Membership shall support broad stakeholder participation while preserving a clear and administrable voting structure for matters reserved to members under these Bylaws.

Section 3.2. Voting Membership.

- (a) An individual who is a Holder of Coordination and is an amateur radio licensee in good standing under applicable FCC rules may qualify as a Voting Member, subject to the admission procedures established by the Board.

- (b) If a Holder of Coordination is a club, association, corporation, governmental body, or other entity, that entity may qualify as a Voting Member and shall designate one authorized representative to exercise its membership vote. The Board may require reasonable documentation of the representative's authority.
- (c) Each Voting Member is entitled to one vote on each matter submitted to the Voting Members, regardless of the number of systems, repeaters, auxiliary stations, or other facilities associated with that Holder of Coordination.
- (d) A Voting Member must remain eligible under this Section and current in any dues, disclosures, or administrative requirements established under duly adopted policies to remain in good standing.

Section 3.3. Associate Membership. An amateur radio licensee, club, organization, technical contributor, volunteer, advisor, or other person interested in supporting the Corporation's mission may be admitted as an Associate Member. Associate Members may receive communications, participate in programs and meetings as permitted by policy, and serve on advisory or operational committees when appointed, but do not have voting rights solely by reason of Associate Membership.

Section 3.4. Additional Nonvoting Categories. The Board may establish additional nonvoting membership, supporter, advisor, institutional, honorary, or affiliate categories by policy if doing so advances the Corporation's mission. No such category may be granted voting rights without an amendment to these Bylaws.

Section 3.5. Admission. The Board shall establish fair and reasonable membership admission procedures consistent with these Bylaws. No person shall be admitted as a member without that person's consent. The Board may delegate routine membership administration to an officer, committee, or authorized agent, subject to Board oversight.

Section 3.6. Dues and Assessments. The Board may establish annual dues, fees, or reasonable assessments for one or more membership categories. The amount, due date, waiver criteria, and collection procedures shall be stated in the Membership Policy or a Board resolution. Failure to pay required dues after reasonable notice may result in loss of good standing or termination of membership as provided by policy and law.

Section 3.7. Membership Year. The membership year shall be established by the Board. A change in the membership year shall not impair a member's voting rights during a period for which required dues have been paid, except as otherwise required by eligibility rules or applicable law.

Section 3.8. Good Standing. A member is in good standing when the member satisfies applicable eligibility requirements, is current on required dues or approved waivers, is not under suspension, and has complied with material membership obligations established by these Bylaws and duly adopted policies.

Section 3.9. Change in Voting Eligibility. If a Voting Member no longer satisfies the eligibility requirements for Voting Membership, voting rights shall cease as of the date determined under the Membership Policy after reasonable verification. If otherwise eligible, the member may continue as an Associate Member without a new application.

Section 3.10. Resignation and Termination. Membership terminates upon death of an individual member, dissolution of an entity member, voluntary withdrawal, failure to maintain eligibility where applicable, or expulsion in accordance with these Bylaws and applicable law. Termination of membership does not, by itself, transfer, revoke, or determine the technical status of a frequency coordination, which shall be governed by the Corporation's coordination policies.

Section 3.11. Suspension and Expulsion. A member may be suspended or expelled for material violation of these Bylaws, the Code of Ethics, a material Corporation policy, or conduct substantially prejudicial to the Corporation, following fair notice of the grounds and a reasonable opportunity to be heard. Unless the Articles of Incorporation or applicable law require otherwise, suspension or expulsion shall require a two-thirds vote of the Board members then in office who are disinterested in the matter. The member may appeal under a procedure established by policy. A membership disciplinary process shall not be used to circumvent technical coordination appeal procedures.

Section 3.12. No Property Rights. Membership does not create any ownership interest in the Corporation, its assets, its intellectual property, its databases, its coordination records, or amateur radio spectrum.

Section 3.13. Membership Records and Privacy. The Corporation shall maintain membership records required by law. Personal contact information shall be used and disclosed only as reasonably necessary for lawful corporate purposes, member rights, coordination administration, or as otherwise required by law, subject to the Corporation's privacy and records-access policies.

ARTICLE IV MEETINGS AND VOTING OF MEMBERS

Section 4.1. Annual Meeting. The Corporation shall hold an annual meeting of Voting Members each calendar year at a date and time fixed by the Board. The annual meeting shall include, as applicable, election of directors, reports concerning the Corporation's activities and financial condition, and other matters properly presented under these Bylaws.

Section 4.2. Special Meetings. Special meetings of Voting Members may be called by the Board, the Chair/President, or by Voting Members holding at least five percent of the voting power of the Corporation through one or more signed written demands stating the purpose of the meeting, subject to applicable law.

Section 4.3. Place and Electronic Participation. Member meetings may be held at a physical location in or outside Wisconsin or, to the extent permitted by applicable law, by electronic or other remote means approved by the Board that permit reasonable verification of participants, contemporaneous participation, and reliable voting records.

Section 4.4. Notice. Notice of each annual, regular, or special meeting of members shall state the date, time, place or remote-access method, and matters required by law or these Bylaws. Unless a different period is required by law for a particular action, notice shall be given not fewer than ten days and not more than sixty days before the meeting. Notice may be delivered electronically where permitted by law and where the member has provided or authorized an electronic address for Corporation communications.

Section 4.5. Record Date. The Board may fix a record date for determining members entitled to notice, vote, demand a special meeting, or exercise other membership rights, consistent with applicable law. If no record date is fixed, the statutory default shall apply.

Section 4.6. Quorum. Unless a higher quorum is required by applicable law, the Articles of Incorporation, or these Bylaws, Voting Members representing ten percent of the votes entitled to be cast on a matter shall constitute a quorum for that matter. Once a quorum is established, the withdrawal of members shall not invalidate action taken while the quorum requirement remains satisfied under applicable law.

Section 4.7. Voting Standard. Unless a greater vote is required by applicable law, the Articles of Incorporation, or these Bylaws, a matter is approved by a majority of votes cast by Voting Members present in person or represented by valid proxy at a meeting at which a quorum is present.

Section 4.8. Voting Rights. Each Voting Member shall have one vote on each matter submitted to Voting Members. Cumulative voting is not authorized unless later expressly provided by amendment to these Bylaws.

Section 4.9. Proxy Voting. Proxy voting is permitted to the extent allowed by Wisconsin law and the Election and Succession Policy. A proxy must be in writing or valid electronic form, identify the appointing member and proxy holder, and be received by the Secretary or authorized election agent by the deadline established for the meeting. The Board may adopt reasonable procedures to verify proxies and prevent duplicate voting.

Section 4.10. Written and Electronic Ballots. To the extent permitted by law, any action that may be taken at a meeting of members may be submitted by written or electronic ballot if authorized by the Board and conducted in a manner that satisfies applicable quorum, notice, ballot-content, security, and vote-counting requirements. Director elections may be conducted by secure written or electronic ballot under the Election and Succession Policy.

Section 4.11. Election of Directors. Voting Members shall elect directors at the annual meeting or through an authorized ballot process associated with the annual meeting. Elections shall be administered under Article V and the Election and Succession Policy. The Board may appoint a neutral election committee or tellers to administer nominations, eligibility verification, ballot security, vote tabulation, and certification of results.

Section 4.12. Nominations. The Board shall provide a reasonable nominations process that permits qualified candidates to be identified in advance of the election. The procedure shall be stated in the Election and Succession Policy and shall include reasonable notice of open seats, candidate eligibility, nomination deadlines, and ballot procedures.

Section 4.13. Meeting Conduct. The presiding officer shall conduct member meetings fairly and in an orderly manner. Parliamentary procedure may be used as a guide under Article XVIII, but shall not override applicable law, the Articles of Incorporation, or these Bylaws.

Section 4.14. Minutes and Election Records. The Secretary or designee shall maintain minutes of member meetings and records of election results, written consents, ballots, and other member actions as required by law and the Corporation's records-retention policies.

ARTICLE V

BOARD OF DIRECTORS

Section 5.1. General Authority. All corporate powers shall be exercised by or under the authority of, and the affairs of the Corporation shall be managed under the direction of, the Board, except to the extent otherwise provided by applicable law or the Articles of Incorporation.

Section 5.2. Number and Structure. The Board shall consist of nine directors. Four directors shall serve as the Corporation's principal officers - Chair/President, Vice Chair/Vice President, Secretary, and Treasurer - and five directors shall serve as Directors-at-Large. Officer status does not create an additional Board seat; each officer is one of the nine directors.

Section 5.3. Directors-at-Large. Directors-at-Large are full voting members of the Board and shall provide independent governance oversight, stakeholder perspective, committee participation, strategic guidance, and such other service as the Board may assign. Directors-at-Large do not individually control an operational department unless expressly delegated authority by the Board.

Section 5.4. Qualifications. Each director must be an individual who supports the Corporation's mission and is willing and able to discharge the duties of a director. A director need not be a Wisconsin resident unless later required by the Articles of Incorporation or these Bylaws. The Election and Succession Policy may establish additional reasonable qualifications, including conflict-disclosure, conduct, or participation requirements, provided they do not improperly restrict member voting rights.

Section 5.5. Terms. Except for transitional terms established under Section 17.3, directors shall serve two-year terms and may be reelected. Terms shall be staggered so that, as nearly as practical, approximately one-half of the Board seats are elected each year. A director shall continue to serve until a successor is elected or appointed and qualifies, unless the director earlier resigns, is removed, becomes ineligible, or dies.

Section 5.6. Election. Directors shall be elected by Voting Members. The Election and Succession Policy shall identify the Board seats open in each election cycle and the process for nominations and balloting. Election results shall be certified by the Secretary, an election committee, or another neutral person designated by the Board.

Section 5.7. Initial and Transitional Board. During the Corporation's organizational transition, initial directors may be selected or appointed as authorized by the Articles of Incorporation, organizational resolutions, and Wisconsin law. Unfilled Board seats may remain vacant temporarily, provided the Corporation at all times satisfies the minimum Board requirements of applicable law and can lawfully act through the directors then in office. The Board shall make reasonable efforts to fill vacancies and reach the intended nine-director structure.

Section 5.8. Resignation. A director may resign at any time by delivering written notice to the Chair/President, Secretary, or Board. The resignation is effective when the notice is received unless a later effective date is stated.

Section 5.9. Vacancies. Unless otherwise required by law or the Articles of Incorporation, any vacancy on the Board, including a vacancy resulting from an increase in the number of directors, may be filled until the next succeeding annual election by the affirmative vote of a majority of the directors

then in office, even if fewer than a quorum. At the next annual election, the Voting Members shall elect a director for the remainder of any term as required by law and the Election and Succession Policy.

Section 5.10. Removal by Members. A director elected by the Voting Members may be removed by the Voting Members in the manner permitted by Wisconsin law. Any meeting called for removal shall provide the notice and purpose required by law and shall afford the affected director a reasonable opportunity to address the matter before the vote, except where immediate protective action is authorized by law.

Section 5.11. Removal for Nonattendance. Because continuity and active leadership are material governance objectives, a director may be removed by the Board for failing, without good cause, to attend three consecutive regular Board meetings after written notice of the attendance concern and a reasonable opportunity to respond. This provision is intended to operate to the extent permitted by Wisconsin law and shall be disclosed to each director at the beginning of the director's term.

Section 5.12. Duties of Directors. Each director shall act in good faith, in a manner reasonably believed to be in the best interests of the Corporation and its exempt purposes, with appropriate care, diligence, loyalty, and attention to the Corporation's mission, finances, records, policies, and legal obligations. Directors shall prepare for and participate in meetings, protect confidential information, disclose conflicts, and exercise independent judgment.

Section 5.13. Reliance on Information and Experts. A director may rely in good faith on information, opinions, reports, financial statements, technical analysis, legal advice, or other material prepared or presented by officers, employees, committees, legal counsel, accountants, engineers, technical advisors, frequency-coordination specialists, or other persons whom the director reasonably believes to be competent in the matter, unless the director has knowledge making such reliance unwarranted.

Section 5.14. Compensation. Directors shall not receive compensation merely for service as directors. The Corporation may reimburse reasonable expenses incurred on behalf of the Corporation. A director may receive reasonable compensation for separate professional, technical, administrative, or other services only when the arrangement is fair to the Corporation, approved by disinterested directors under the Conflict of Interest Policy, documented in the minutes, and consistent with Section 501(c)(3).

Section 5.15. No Individual Board Authority. No director, acting individually, has authority to bind the Corporation, direct staff or volunteers, make a coordination decision, access restricted records, commit funds, or speak on behalf of the Board except as expressly authorized by these Bylaws, a Board resolution, a duly adopted policy, or the scope of an officer position.

ARTICLE VI OFFICERS

Section 6.1. Principal Officers. The principal officers of the Corporation shall be the Chair/President, Vice Chair/Vice President, Secretary, and Treasurer. The dual titles reflect the

Corporation's governance terminology and may be used interchangeably in external records where appropriate.

Section 6.2. Election and Term of Officers. The Board shall elect the principal officers from among the nine directors at the first Board meeting following each annual election of directors, or as soon thereafter as practical. Officers shall serve one-year terms and may be reelected while they remain directors. Election as an officer does not change the individual's underlying term as a director.

Section 6.3. Chair/President. The Chair/President shall preside at meetings of the Board and members; provide governance leadership and strategic direction; coordinate Board agendas with the Secretary and appropriate committee leaders; serve as a principal spokesperson when authorized; promote implementation of Board decisions; support succession and Board development; and perform other duties assigned by the Board. The Chair/President shall not unilaterally override the Board, Frequency Coordinator, Treasurer, or any duly established review process.

Section 6.4. Vice Chair/Vice President. The Vice Chair/Vice President shall assist the Chair/President, perform duties delegated by the Board, support committee coordination and Board development, and perform the duties of the Chair/President when the Chair/President is absent, unavailable, recused, or the office is vacant.

Section 6.5. Secretary. The Secretary shall maintain or oversee the maintenance of corporate records; ensure preparation and preservation of minutes; give or cause required meeting notices to be given; maintain current copies of the Articles of Incorporation, Bylaws, Board resolutions, officer and director records, and official correspondence; certify corporate actions and election results when appropriate; and perform other duties assigned by the Board. The Secretary may delegate administrative tasks but remains responsible for reasonable oversight of the corporate recordkeeping function.

Section 6.6. Treasurer. The Treasurer shall oversee the financial affairs of the Corporation; monitor accounting records, bank accounts, receipts, disbursements, budgets, and financial reports; report the Corporation's financial condition to the Board; support required federal and state filings; ensure that restricted funds are appropriately tracked; and promote compliance with the Financial Controls Policy. The Treasurer shall not be the sole person responsible for authorizing, initiating, reconciling, and reviewing the same material financial transaction when practical separation of duties is available.

Section 6.7. Additional Officers and Assistants. The Board may appoint additional officers, assistant officers, coordinators, or agents and define their duties by resolution or policy, provided that such appointments do not alter the nine-member Board structure unless these Bylaws are amended.

Section 6.8. Removal from Office. The Board may remove an officer from the officer position, with or without cause, by majority vote of the directors then in office, subject to any greater vote required by law, the Articles of Incorporation, or an applicable contract. Removal from an officer position does not automatically remove the individual as a director.

Section 6.9. Officer Resignation and Vacancy. An officer may resign the officer position by written notice. A vacancy in an officer position shall be filled by the Board from among the directors as soon

as practical. If the Chair/President position becomes vacant, the Vice Chair/Vice President shall perform the Chair/President's duties until the Board elects a successor.

Section 6.10. Separation of Duties. The Board shall structure officer responsibilities to promote reasonable separation of financial, recordkeeping, election, and oversight functions. No officer shall use the office to suppress records, interfere with a fair election or appeal, bypass financial controls, or obtain improper personal benefit.

ARTICLE VII MEETINGS AND ACTIONS OF THE BOARD

Section 7.1. Regular Meetings. The Board shall hold regular meetings as necessary to discharge its responsibilities and, absent extraordinary circumstances, at least quarterly. The Board may establish an annual meeting calendar by resolution.

Section 7.2. Special Meetings. Special meetings may be called by the Chair/President, Vice Chair/Vice President when acting for the Chair/President, or by at least twenty percent of the directors then in office, consistent with Wisconsin law.

Section 7.3. Notice. Regular Board meetings may be held pursuant to an adopted schedule without separate notice unless the Board determines otherwise. Special meetings shall be preceded by at least two days' notice to each director stating the date, time, and place or remote-access method, unless a longer notice period is required by law or these Bylaws for the specific action. The purpose need not be stated unless required by law, these Bylaws, or the Board's policies.

Section 7.4. Remote Participation. Directors may participate in Board and committee meetings by telephone, video conference, electronic platform, or other communication method permitted by Wisconsin law through which participating directors can contemporaneously hear, read, or transmit communications as required by law. A director participating through an authorized method is deemed present in person.

Section 7.5. Quorum. A quorum of the Board consists of a majority of the directors in office immediately before the meeting begins, unless a greater quorum is required by applicable law, the Articles of Incorporation, or these Bylaws.

Section 7.6. Voting. If a quorum is present, the affirmative vote of a majority of directors present is the act of the Board unless applicable law, the Articles of Incorporation, or these Bylaws require a greater vote. Each director has one vote. Proxy voting by directors is not permitted.

Section 7.7. Action Without a Meeting. To promote continuity while preserving accountability, an action permitted to be taken at a Board meeting may be taken without a meeting by written consent signed by at least two-thirds of the directors then in office, to the extent authorized by Wisconsin law. The full text of the proposed action shall be provided to all directors. Any director who does not sign shall receive prompt notice of the action and its effective date, and the written consent shall be retained with the Board records. The Board may require unanimous written consent for specified categories of action by policy or resolution.

Section 7.8. Waiver of Notice. A director may waive notice before or after a meeting in the manner permitted by law. Attendance at a meeting constitutes waiver of notice to the extent provided by Wisconsin law unless the director timely objects to the meeting or transaction of business because of improper notice.

Section 7.9. Executive Session. The Board may enter executive session for legitimate confidential matters, including legal advice, personnel, cybersecurity, protected personal information, negotiations, investigations, or conflicts of interest. Final corporate action shall be recorded in the minutes to the extent required by law, while confidential details may be maintained separately where appropriate.

Section 7.10. Minutes. The Secretary shall ensure that minutes or a record of action are prepared for Board meetings and actions without meetings. Minutes shall identify attendance, motions or actions, material recusals, votes where required, and other information necessary to create an accurate corporate record. Draft minutes shall be reviewed and approved within a reasonable time.

Section 7.11. Guests and Advisors. The Board may invite members, volunteers, counsel, accountants, technical advisors, frequency coordinators, committee representatives, or other persons to attend all or part of a meeting. Attendance by a non-director does not confer voting rights or Board authority.

ARTICLE VIII COMMITTEES, ADVISORS, AND ORGANIZATIONAL UNITS

Section 8.1. Board Committees. The Board may establish one or more committees of the Board by resolution when authorized by these Bylaws and Wisconsin law. Any committee exercising delegated powers of the Board shall consist of at least three directors and shall operate within the authority stated in its charter or establishing resolution. No Board committee may elect officers or fill vacancies on the Board or Board committees to the extent prohibited by law.

Section 8.2. Advisory and Operational Committees. The Board may establish advisory, technical, operational, working, or task committees that include non-directors. Such bodies may research, administer programs, make recommendations, or perform delegated operational tasks, but shall not exercise the legal authority of the Board unless constituted and authorized as a Board committee in compliance with law.

Section 8.3. Frequency Coordination Committee. The Board may maintain a Frequency Coordination Committee to support the Frequency Coordinator, develop and review coordination standards, evaluate technical practices, assist with succession and training, and provide technical recommendations. The Committee shall not alter the technical Band Plan or decide an appeal outside the process established by the Board.

Section 8.4. Technical and Band Plan Working Groups. The Board may establish technical working groups or advisory panels to analyze engineering issues, software modeling, spectrum utilization, selective access, digital modes, propagation, adjacent-state coordination, and technical wording or presentation of the Band Plan. Technical work shall be documented and subject to appropriate review before adoption.

Section 8.5. Finance and Governance Functions. The Board may establish Finance, Audit/Review, Governance, Nominating, Ethics, or other committees to strengthen financial oversight, Board development, elections, compliance, and accountability. Committee charters shall identify membership, authority, reporting, conflicts, and any required independence.

Section 8.6. Appeals Panels. The Board shall provide for an impartial review mechanism for frequency-coordination appeals and material technical disputes. An Appeals Panel may be standing or appointed for a particular matter. A person who made, materially advised, or has a material conflict concerning the challenged decision shall not participate as a voting appeals decision-maker. Detailed procedures shall be established in the Appeals and Dispute Resolution Policy.

Section 8.7. District Representatives, Advisors, and Volunteers. The Board may appoint district representatives, technical advisors, legal or regulatory advisors, historians, database administrators, volunteers, or other persons to support the Corporation. Appointees serve subject to the terms of their appointment and applicable policy and may be removed by the Board unless otherwise provided by law or contract.

Section 8.8. Committee Charters and Records. Each standing committee shall operate under a Board-approved charter or resolution defining purpose, authority, composition, appointment, term, reporting, records, confidentiality, and conflict requirements. Committees shall maintain records appropriate to their responsibilities and provide regular reports to the Board.

ARTICLE IX

FREQUENCY COORDINATION GOVERNANCE AND TECHNICAL CONTINUITY

Section 9.1. Central Coordination Function. Frequency coordination is a central programmatic function of the Corporation. The Board shall provide governance oversight, resources, succession planning, records controls, and policies sufficient to support fair and technically competent coordination operations.

Section 9.2. Appointment of Frequency Coordinator. The Frequency Coordinator shall be appointed by the Board. The Board may appoint one or more assistant or deputy coordinators and may provide for temporary acting authority when the Frequency Coordinator is unavailable or the position is vacant. This Section supersedes any legacy governance practice that assigned appointment authority to an executive committee or individual officer.

Section 9.3. Qualifications and Independence. The Frequency Coordinator should possess appropriate amateur radio, coordination, technical, administrative, and recordkeeping knowledge. The Coordinator shall act impartially, disclose material conflicts, apply adopted standards consistently, and avoid improper preference based on personal, club, commercial, or political relationships.

Section 9.4. Duties of Frequency Coordinator. Subject to Board-approved policies, the Frequency Coordinator shall administer coordination applications and updates; review technical information; apply the Band Plan and coordination standards; maintain or cause maintenance of coordination records; communicate recommendations and administrative notices; coordinate with neighboring

jurisdictions when appropriate; assist with interference-resolution procedures; and report material operational matters to the Board.

Section 9.5. Order and Fairness of Requests. Coordination requests shall be handled in a fair, documented, and reasonably consistent manner. The Corporation may continue a first-received/first-processed approach where technically and administratively appropriate, subject to completeness of applications, conflict avoidance, applicable policy, and legitimate technical considerations.

Section 9.6. Nature of Coordination Recommendation. A frequency-coordination recommendation does not grant a license, ownership interest, exclusive spectrum right, or indefinite entitlement. All amateur licensees remain subject to FCC rules and applicable law. A recommendation may be revised or withdrawn only in accordance with applicable Corporation policies and fair procedures.

Section 9.7. Applications, Construction, Updates, and Transfers. Detailed requirements for new systems, modifications, construction time limits, extensions, periodic updates, transfer of a Holder of Coordination, relinquishment, and significant technical changes shall be governed by the Repeater Coordination Policy, approved forms, and technical standards. The Board shall ensure that forms and policies remain internally consistent.

Section 9.8. Band Plan. The Band Plan shall be adopted and maintained by Board resolution as a separate technical instrument. Nothing in these Bylaws changes the technical content of the existing Wisconsin Band Plan. Editorial cleanup, formatting, terminology, and presentation may be improved without changing technical allocations. Any future substantive technical change, if ever considered, must follow the technical review and approval process established by policy and shall comply with applicable FCC rules and coordination obligations.

Section 9.9. Selective Access and Technical Standards. Selective-access plans, coordination spacing, modeling criteria, emission parameters, antenna and ERP considerations, and other engineering standards shall be maintained in separate technical policies or standards. The Board shall avoid altering technical criteria without competent technical review.

Section 9.10. Interference Resolution. The Corporation shall maintain procedures encouraging documented, good-faith efforts by affected system operators to identify and resolve harmful interference. Unresolved matters may be escalated to the Frequency Coordinator and, if necessary, to the appeal or review process established by policy.

Section 9.11. De-Coordination. The grounds and procedures for de-coordination or withdrawal of a recommendation shall be stated in a Board-approved coordination policy and shall provide reasonable notice, documentation, consistency, and an opportunity for review where appropriate. De-coordination shall not be used as retaliation for protected governance participation, criticism, or a good-faith appeal.

Section 9.12. Appeal and Review. A person materially affected by a final coordination or de-coordination decision may request review under the Appeals and Dispute Resolution Policy. The review procedure shall identify deadlines, required documentation, recusal standards, the reviewing

body, and the form of final decision. The Board retains ultimate governance responsibility for the integrity of the process while respecting competent technical judgment.

Section 9.13. Records and Audit Trail. The Corporation shall maintain an administrative and technical record sufficient to establish the material history of coordination recommendations, significant changes, periodic updates, transfers, interference matters, appeals, and de-coordination actions, subject to reasonable retention and privacy controls.

Section 9.14. Interstate and Regional Cooperation. The Frequency Coordinator and authorized representatives may communicate and cooperate with other frequency coordinators, the amateur radio community, technical bodies, and governmental or regulatory agencies when appropriate to the Corporation's exempt purposes and technical responsibilities.

Section 9.15. Succession and Continuity. The Board shall maintain reasonable succession procedures for the Frequency Coordinator and critical technical functions, including backup access to essential records, documented procedures, transfer of credentials, and continuity of technical knowledge. No critical coordination database or credential should be under the uncontrolled exclusive custody of a single individual.

ARTICLE X

ETHICS, CONFLICTS OF INTEREST, AND ACCOUNTABILITY

Section 10.1. Conflict of Interest Policy. The Board shall adopt and maintain a written Conflict of Interest Policy consistent with Wisconsin law and federal tax-exemption principles. The policy shall apply to directors, officers, and other persons designated by the Board.

Section 10.2. Disclosure. A director or officer shall promptly disclose any actual or potential material financial, personal, organizational, family, club, vendor, or other conflict that could reasonably affect independent judgment on a matter before the Corporation.

Section 10.3. Recusal. An interested person shall not vote on a transaction or decision from which that person or a related private interest may improperly benefit. The disinterested decision-makers shall determine whether a conflict exists and whether participation in discussion is appropriate. Material recusals shall be reflected in the minutes.

Section 10.4. Interested Transactions. A transaction involving a director or related entity may be approved only when the material relationship is disclosed or known, the decision is made by disinterested decision-makers in the manner required by law, and the transaction is fair and reasonable to the Corporation. The Board may impose stricter requirements by policy.

Section 10.5. Annual Disclosure. Each director and principal officer shall complete an annual conflict-of-interest disclosure in the form approved by the Board and shall update the disclosure when material circumstances change.

Section 10.6. Code of Ethics. The Board shall maintain a Code of Ethics addressing integrity, impartiality, respectful conduct, stewardship, confidentiality, records, technical fairness, use of Corporation resources, and avoidance of retaliation or abuse of authority.

Section 10.7. Whistleblower and Non-Retaliation. The Corporation shall maintain a Whistleblower Policy providing a reasonable method to report suspected fraud, financial irregularity, legal noncompliance, misuse of assets, serious governance misconduct, or retaliation. Good-faith reports shall be handled as confidentially as reasonably practical and shall not result in improper retaliation.

Section 10.8. Complaints Concerning Technical Decisions. A disagreement with a frequency-coordination decision shall ordinarily proceed through the coordination appeal process rather than a general ethics complaint, unless the complaint concerns bias, retaliation, conflict of interest, falsification, or other misconduct independent of the technical merits.

ARTICLE XI

FINANCIAL ADMINISTRATION AND OVERSIGHT

Section 11.1. Financial Responsibility. The Board is responsible for oversight of the Corporation's finances, assets, internal controls, tax and regulatory compliance, and use of funds in furtherance of the Corporation's exempt purposes.

Section 11.2. Fiscal Year. The fiscal year shall be fixed by Board resolution and may be changed by the Board in a manner consistent with applicable filing obligations.

Section 11.3. Annual Budget. The Board shall approve an annual operating budget or financial plan. Material expenditures outside the approved budget shall require authorization under the Financial Controls Policy.

Section 11.4. Bank and Financial Accounts. Corporation funds shall be held in accounts titled in the Corporation's legal name at financial institutions approved by the Board. Personal accounts shall never be used to hold Corporation funds.

Section 11.5. Financial Controls. The Board shall adopt and maintain a Financial Controls Policy addressing authorization limits, separation of duties, receipts, disbursements, reconciliations, expense reimbursement, electronic payments, credit/debit cards, reserves, restricted funds, record retention, and review of financial reports.

Section 11.6. Signature and Payment Authority. The Board shall establish banking and signature authority by policy or resolution. No single individual should, when practical, control the authorization, execution, reconciliation, and review of the same material transaction. Dual approval shall be required for categories or thresholds specified by the Board.

Section 11.7. Financial Reporting. The Treasurer shall provide financial reports to the Board at least quarterly and an annual report concerning the Corporation's financial condition. Reports shall include information reasonably sufficient for the Board to understand cash balances, income, expenses, material obligations, restricted funds, and budget performance.

Section 11.8. Restricted Funds and Grants. Restricted gifts, grants, or other funds shall be used in accordance with donor restrictions, grant terms, applicable law, and the Corporation's exempt purposes. Restrictions shall be documented and tracked separately where necessary.

Section 11.9. No Personal Loans. The Corporation shall not make personal loans to directors or officers. This prohibition does not prevent reasonable advances or reimbursements for documented Corporation expenses under an approved policy.

Section 11.10. Compensation and Reimbursement. Compensation for services, if any, shall be reasonable and approved through a conflict-free process. Reimbursements shall require appropriate documentation and compliance with the Financial Controls Policy. No payment may be made as a distribution of profits or based solely on Board or membership status.

Section 11.11. Independent Review. The Board shall obtain an independent financial review, audit, compilation, tax professional review, or other outside financial assistance when required by law, grant conditions, material risk, or Board determination. The scope shall be proportionate to the Corporation's size, revenues, complexity, and risk.

Section 11.12. Tax and Regulatory Filings. The Corporation shall timely prepare and submit federal, state, and other filings required for its corporate and tax-exempt status, including required annual returns, notices, and reports. The filing function may be delegated, but the Board retains oversight responsibility.

ARTICLE XII RECORDS, TRANSPARENCY, HISTORICAL PRESERVATION, AND DATA STEWARDSHIP

Section 12.1. Permanent Corporate Records. The Corporation shall keep permanent records of minutes of member and Board meetings, actions taken without meetings, and actions of Board committees as required by Wisconsin law. Appropriate accounting and membership records shall also be maintained.

Section 12.2. Core Governance Records. The Corporation shall maintain current copies of its Articles of Incorporation, these Bylaws and amendments, Board resolutions affecting membership rights or governance, current director and officer information, required annual reports, material policies, and other records required by law.

Section 12.3. Coordination Records. The Corporation shall maintain a reliable coordination database or record system reflecting active and historical coordination information, administrative contacts, material updates, transfers, and other information reasonably necessary to administer coordination functions. Access controls shall balance continuity, privacy, security, and legitimate transparency.

Section 12.4. Historical Records and Institutional Knowledge. Preservation of historical records and institutional knowledge is an organizational objective. The Board may accept, digitize, index, archive, or preserve legacy minutes, correspondence, band-plan history, technical studies, forms, coordination files, databases, and other materials lawfully transferred to the Corporation.

Section 12.5. Member Inspection Rights. Members shall have inspection and copying rights to the extent provided by Wisconsin law and the Records Access Policy. The Corporation may establish

reasonable procedures concerning written requests, proper purpose where permitted, confidentiality, privacy, security, and reasonable copying costs.

Section 12.6. Public Transparency. The Board shall promote reasonable public transparency regarding the Corporation's mission, governance, leadership, major policies, coordination procedures, and public-facing technical materials, while protecting confidential, personal, security-sensitive, privileged, or restricted information.

Section 12.7. Document Retention. The Board shall adopt a Document Retention and Destruction Policy identifying retention periods and preservation requirements for governance, financial, tax, membership, technical, coordination, legal, contractual, and historical records. No person may destroy, conceal, alter, or improperly remove records subject to a legal hold, investigation, pending dispute, audit, or required retention period.

Section 12.8. Data Privacy and Cybersecurity. The Board shall maintain reasonable data-privacy and cybersecurity practices appropriate to the Corporation's resources and risks, including access controls, credential management, backups, incident response, protection of personal information, and continuity of critical coordination data.

Section 12.9. Access Credentials and Continuity. Critical accounts, domains, websites, databases, cloud services, financial systems, and technical repositories shall be controlled in the Corporation's name where practicable and shall use documented recovery and succession procedures. No single volunteer or officer should have irreplaceable exclusive control over critical organizational systems.

ARTICLE XIII

CONTRACTS, BANKING, ASSETS, PROPERTY, AND LEGACY TRANSFERS

Section 13.1. Contracts and Instruments. The Board may authorize any officer or agent to enter into contracts or execute instruments on behalf of the Corporation. Unless authorized by these Bylaws, a Board resolution, or a duly adopted policy, no officer, director, member, coordinator, volunteer, or agent has authority to bind the Corporation.

Section 13.2. Banking and Signature Authority. Checks, drafts, electronic payments, transfers, and other financial instruments shall be authorized and executed in accordance with the Banking and Signature Authority Policy and Financial Controls Policy.

Section 13.3. Ownership and Control of Assets. Assets acquired with Corporation funds, donated to the Corporation, or lawfully transferred to the Corporation shall be held for the Corporation's exempt purposes and shall be inventoried, safeguarded, and managed under the Asset Management Policy.

Section 13.4. Legacy Assets and Records. The Corporation may receive records, data, equipment, funds, intellectual property, domains, software, archives, contractual rights, or other assets from a legacy or predecessor organization only through a lawful, documented transfer approved by the appropriate governing bodies and consistent with donor restrictions, contractual obligations, applicable law, and the Corporation's tax-exempt purposes.

Section 13.5. No Automatic Succession or Assumption. Use of a similar mission, historical material, technical standard, band plan, or stakeholder network does not by itself constitute legal succession to another organization. The Corporation shall not be deemed to have assumed the debts, liabilities, contracts, tax obligations, claims, or other responsibilities of a legacy organization unless expressly accepted by lawful written agreement and Board approval after appropriate review.

Section 13.6. Intellectual Property and Technical Materials. The Board shall protect the Corporation's rights in its name, logos, website, original publications, databases, software, forms, technical documents, and other intellectual property. Legacy materials shall be used only to the extent the Corporation has lawful ownership, permission, license, public-domain rights, or another valid basis for use.

Section 13.7. Gifts and Grants. The Corporation may accept gifts, grants, bequests, sponsorship support, or other contributions that further its exempt purposes. The Board may decline a contribution that carries unlawful, impractical, reputationally harmful, technically compromising, or mission-inconsistent restrictions.

Section 13.8. Insurance. The Board may obtain property, general liability, directors and officers, cyber, volunteer, equipment, or other insurance appropriate to the Corporation's activities and risk profile.

ARTICLE XIV

INDEMNIFICATION, INSURANCE, AND PROTECTION OF VOLUNTEERS

Section 14.1. Indemnification. To the fullest extent required or permitted by Wisconsin law and subject to any limitation in the Articles of Incorporation, the Corporation shall indemnify its directors and officers against liabilities and reasonable expenses arising from proceedings in which they are involved because of their corporate service, except to the extent indemnification is unavailable because of conduct for which indemnification may lawfully be denied.

Section 14.2. Advancement of Expenses. The Corporation may advance reasonable expenses of a director or officer in connection with a proceeding to the extent permitted by law and upon any undertaking or determination required by law or Board policy.

Section 14.3. Additional Indemnification. The Board may provide lawful indemnification or expense protection to employees, volunteers, advisors, committee members, coordinators, or agents, consistent with Wisconsin law and the Corporation's resources and insurance coverage.

Section 14.4. Insurance. The Corporation may purchase and maintain insurance on behalf of directors, officers, employees, volunteers, and agents against liabilities asserted against them because of their service, to the extent permitted by law.

Section 14.5. No Protection for Improper Conduct. Nothing in these Bylaws is intended to protect a person from consequences of willful misconduct, criminal conduct, improper personal benefit, material conflict-of-interest misconduct, fraud, intentional falsification, or other conduct for which liability or indemnification may not lawfully be eliminated.

Section 14.6. Volunteer Service. The Corporation may rely extensively on volunteers. Volunteer service does not create ownership rights in Corporation assets, records, systems, or technical materials. Volunteers shall act within delegated authority and comply with applicable policies, confidentiality requirements, and records-return obligations.

ARTICLE XV AMENDMENT OF BYLAWS

Section 15.1. Authority to Propose Amendments. An amendment to these Bylaws may be proposed by a two-thirds vote of the Board or by a written proposal signed by Voting Members holding at least ten percent of the Corporation's voting power.

Section 15.2. Member Approval. Except for a limited compliance amendment under Section 15.3, an amendment shall be adopted only upon approval by at least two-thirds of the votes cast by Voting Members at a meeting or authorized ballot in which the applicable quorum requirement is satisfied. Notice of the proposed amendment, including the full text or a clear summary, shall be provided at least thirty days before the vote.

Section 15.3. Limited Compliance Amendments. If legal counsel or a qualified tax professional advises that a non-substantive amendment is reasonably necessary to maintain legal compliance or support qualification under Section 501(c)(3), the Board may adopt that amendment by a two-thirds vote of directors then in office, provided the amendment does not materially alter member voting rights, the nine-member Board structure, director election rights, the Corporation's exempt purpose, or dissolution protections. Any amendment adopted under this Section shall be promptly communicated to Voting Members and reported at the next annual meeting.

Section 15.4. Protected Governance Provisions. Any amendment materially changing the Corporation's voting-membership rights, director election rights, Board size, Section 501(c)(3) limitations, or dissolution provisions must be approved by Voting Members under Section 15.2 and may not be adopted solely by the Board.

Section 15.5. Consistency. No amendment may authorize an activity inconsistent with the Articles of Incorporation, mandatory Wisconsin law, or the requirements applicable to an organization described in Section 501(c)(3).

Section 15.6. Record of Amendments. The Secretary shall maintain the current Bylaws and a permanent record of amendments, including the date and method of approval.

ARTICLE XVI DISSOLUTION AND DISTRIBUTION OF ASSETS

Section 16.1. Approval of Dissolution. The Corporation may dissolve only in accordance with Wisconsin law, the Articles of Incorporation, and these Bylaws. After directors have been elected, a voluntary dissolution shall require approval of the Board and the Voting Members in the manner required by law, provided that these Bylaws require at least a two-thirds vote of the directors then in office and at least two-thirds of votes cast by Voting Members on the dissolution at a meeting or authorized ballot with a quorum.

Section 16.2. Plan of Dissolution. Before final dissolution, the Board shall approve a written plan addressing known debts and obligations, restricted funds, contracts, records, coordination data, technical materials, intellectual property, physical assets, and the proposed recipients of remaining assets.

Section 16.3. Payment of Obligations. The Corporation shall pay, satisfy, or make lawful provision for its debts, liabilities, and obligations before distributing remaining assets, subject to applicable law and valid restrictions.

Section 16.4. Distribution for Exempt Purposes. Upon dissolution, all remaining assets of the Corporation shall be distributed for one or more exempt purposes within the meaning of Section 501(c)(3) of the Internal Revenue Code, or the corresponding provision of any future federal tax law, or to the federal government, or to a state or local government, for a public purpose. No remaining assets shall be distributed to directors, officers, members, coordinators, volunteers, or other private persons except for lawful payment of liabilities or reasonable compensation previously earned.

Section 16.5. Technical and Historical Records. To the extent lawful and practical, the plan of dissolution should provide for transfer or preservation of coordination records, historical archives, technical standards, and institutional knowledge with one or more qualified nonprofit, governmental, educational, or other appropriate entities capable of preserving such materials for public, educational, scientific, or amateur-radio purposes. Any transfer shall respect privacy, contractual, intellectual-property, donor, and legal restrictions.

Section 16.6. Court Distribution. Any assets not otherwise lawfully disposed of shall be disposed of by a court of competent jurisdiction exclusively for qualifying exempt or public purposes, consistent with Section 501(c)(3).

ARTICLE XVII TRANSITION AND ORGANIZATIONAL CONTINUITY

Section 17.1. New Corporation and Legacy Continuity. The Corporation is established as a new legal entity intended to continue and modernize the public-benefit mission and repeater-coordination functions historically carried out by Wisconsin amateur radio coordination organizations. Mission continuity does not eliminate the legal separation between the Corporation and any legacy organization.

Section 17.2. Preservation of Technical Continuity. The Board may adopt by resolution the existing Wisconsin Band Plan, selective-access materials, coordination standards, forms, and other legacy technical documents as interim or continuing Corporation documents, subject to lawful ownership or permission and later editorial modernization. Adoption shall not be construed as a technical change to the Band Plan unless a specific substantive change is separately approved through the applicable technical process.

Section 17.3. Initial Staggered Terms. To establish staggered Board terms without disrupting the transition, the initial organizational resolutions may assign initial director terms of one or two years so that, after the transition, approximately one-half of the Board seats are elected each year. Thereafter, regular terms shall be two years under Section 5.5.

Section 17.4. Initial Vacancies. The Corporation may begin operations with fewer than nine filled Board seats if permitted by law and the Articles of Incorporation, but the Board shall use the vacancy process in Section 5.9 and the Election and Succession Policy to fill open seats in an orderly manner. Appointment of a director to an initial vacancy shall be documented by Board resolution.

Section 17.5. Transfer of Records and Operational Control. The Board shall document any transfer of legacy records, coordination databases, domains, credentials, websites, equipment, funds, or other assets. Access credentials and critical operational control shall be transitioned into Corporation-controlled systems as soon as reasonably practical after lawful transfer.

Section 17.6. No Automatic Transfer of Liabilities. No provision of these Bylaws shall be interpreted as an agreement to assume the debts, liabilities, contractual obligations, tax liabilities, employment obligations, claims, or legal responsibilities of a legacy organization. Any assumption must be expressly approved and documented under Section 13.5.

Section 17.7. Institutional Knowledge. The Board may invite former coordinators, directors, officers, technical contributors, historians, or other knowledgeable stakeholders to assist with transition, records preservation, technical continuity, and training, subject to conflict, confidentiality, and access-control requirements.

ARTICLE XVIII

MISCELLANEOUS PROVISIONS AND CERTIFICATION

Section 18.1. Governing Law. These Bylaws shall be governed by the laws of the State of Wisconsin applicable to nonstock corporations, together with applicable federal law.

Section 18.2. Electronic Transactions. Notices, consents, ballots, records, signatures, and other corporate communications may be transmitted, executed, stored, or maintained electronically to the extent permitted by applicable law and Board-approved procedures.

Section 18.3. Parliamentary Authority. The current edition of Robert's Rules of Order Newly Revised may be used as a procedural guide for member and Board meetings when not inconsistent with applicable law, the Articles of Incorporation, these Bylaws, or duly adopted special rules of order.

Section 18.4. Severability. If any provision of these Bylaws is determined to be invalid or unenforceable, the remaining provisions shall remain in effect to the fullest extent permitted by law, and the invalid provision shall be interpreted or amended as narrowly as practical to preserve its lawful purpose.

Section 18.5. Headings. Article and section headings are for convenience and do not limit the meaning of the text.

Section 18.6. No Waiver. Failure to enforce a provision of these Bylaws on one occasion does not constitute a permanent waiver of the provision or the right to enforce it later.

Section 18.7. Effective Date. These Bylaws become effective upon adoption by the persons or body authorized under Wisconsin law and the Articles of Incorporation. They supersede any prior bylaws

adopted by Wisconsin Repeater Alliance, Inc. but do not, by themselves, amend or repeal the governing documents of any separate legacy organization.

CERTIFICATION OF ADOPTION

The undersigned certifies that the foregoing Bylaws were duly adopted as the Bylaws of Wisconsin Repeater Alliance, Inc. by the persons or governing body authorized to adopt them, and that they are in effect as of the date stated below.

Adoption Date

Effective Date

**Secretary / Authorized
Certifier**

Signature

**Board Approval
Reference**

Resolution / Minutes dated _____

IMPLEMENTATION NOTE - NOT PART OF THE BYLAWS

This document is a modernized bylaws draft prepared from the legacy Wisconsin Association of Repeaters, Inc. governance and coordination materials supplied for the Wisconsin Repeater Alliance, Inc. transition project, together with the confirmed nine-director governance objective. It is designed to support the Corporation's planned Section 501(c)(3) structure while keeping technical coordination documents separate from permanent corporate governance.

The filed Articles of Incorporation were not included in the materials reviewed for this bylaws draft. Before submission of an IRS exemption application, the filed Articles should be checked to confirm that their purpose and dissolution provisions satisfy the federal organizational test. Bylaws cannot override a conflicting provision in the Articles of Incorporation and do not, by themselves, cure a deficient corporate organizing document.

Initial officer names are intentionally not embedded in the permanent Bylaws because officer identities change over time and should be recorded in organizational resolutions and corporate minutes. The initial resolutions for this project should separately document the confirmed President/Chair, Vice President/Vice Chair, Treasurer, Secretary when selected, and the initial Directors-at-Large.

Nothing in this bylaws draft changes the technical content of the Wisconsin Band Plan. Frequency tables, repeater pairs, channel spacing, frequency splits, selective-access assignments, and other technical parameters remain matters for the separately maintained technical documents and the Corporation's technical review process.

Drafting reference framework (for implementation review):

- Wisconsin Statutes Chapter 181 (nonstock corporations), including provisions concerning bylaws, members, meetings and voting, directors and officers, committees, conflicts, amendments, dissolution, and corporate records.
- Internal Revenue Code Section 501(c)(3) and current IRS guidance concerning the organizational and operational tests, private inurement, political campaign intervention, lobbying limitations, and dedication of assets upon dissolution.
- 47 C.F.R. Part 97, including the federal definition of a frequency coordinator in 47 C.F.R. Section 97.3(a)(22).
- Legacy Wisconsin Association of Repeaters, Inc. Bylaws (amended March 18, 2017), WAR Policy (August 15, 2020), supplied Board structure material, coordination forms and instructions, Holder of Coordination transfer form, Wisconsin Band Plan, and Selective Access guideline.